

Court No. - 21

Case :- WRIT - C No. - 7339 of 2023

Petitioner :- Jakir

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bipin Kumar, Mohd. Naushad Siddiqui

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Sri N.K. Tiwari, counsel for the respondent-Electricity Department prays for and is granted a week's time to obtain instructions.

Put up as fresh on 15.03.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 2.3.2023

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The petitioner has challenged the recovery notice dated 26.12.2022 and the provisional assessment order dated 05.07.2022.

Sri Narendra Kumar Tiwari, learned counsel appearing for the respondent Electricity Department states that the impugned recovery notice has been withdrawn and that fresh order will be passed after providing opportunity of hearing to the petitioner.

Accordingly, the petition is **disposed of** with liberty to the respondent to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 15.3.2023

Shivangi